

Marine and Aviation

Excess of Loss Reinsurance Treaty

2025

between

Biscaya Versicherung, Munich

(hereinafter referred to as the Reinsured)

and

**New York Re,
New York, U.S.A.**

(hereinafter referred to as the Reinsurer)

Both parties have concluded this Reinsurance Treaty in good faith, after mutual consent and agreement, having regard to:

- reinsurance protection of the Reinsured in previous period
- current structure, performance and expected development of the portfolio of the Reinsured in respect of risks falling under this Reinsurance Treaty
- reinsurance and retrocession contract (MARINE AND AVIATION EXCESS OF LOSS REINSURANCE TREATY RM1801-8/15) covering the Reinsurer and other participating companies from Vienna Insurance Group

whereby it is agreed as follows:

RISK DETAILS

Period	This Treaty shall apply to losses occurring during the 12 months period: Effective from: 1 January 2025 Expiring on: 31 December 2025 Both days inclusive, Local Standard time at the place where the loss occurs. The rights and obligations of both parties to this Treaty shall remain in full force until the effective date of expiry or termination, after which the liability of the Reinsurer shall cease absolutely, except in respect of losses occurring during the period of this Treaty, the claims for which remain unsettled at that date.
Class of Business	Covering all business in respect of business allocated to the Marine and Aviation accounts of the Reinsured.
Retention	EUR 150,000
Covered perils	Marine Sublimit: EUR 3,000,000
Exclusions	General: 1) Insurances and facultative reinsurance on an Excess of loss basis including primaries and layer covers. Aviation: 1) Test flights (apart from coverage afforded by the Aviation Authority Test Flight Clause) 2) Space business 3) Aircraft with 16 or more passenger seats 4) Mechanical Breakdown Insurance 5) Financial guarantees 6) Loss of profits 7) Consequential loss 8) Loss of use 9) Helicopter Risks -Aviation Hull. This exclusion shall not apply up to the limit of EUR 500,000 per individual helicopter ceded into this treaty. 10) Helicopter Risks - Aviation Liability. This exclusion shall not apply up to the limit of EUR 3,500,000 per individual helicopter ceded into this treaty.
Territorial Scope	Worldwide

Limits	The Reinsurer hereby agrees to indemnify the Reinsured up to but not exceeding the Limit of Indemnity of:
Layer 1)	EUR 1,350,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined excess of: EUR 150,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined
Layer 2)	EUR 3,500,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined excess of: EUR 1,500,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined
Layer 3)	EUR 5,000,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined excess of: EUR 5,000,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined
Layer 4)	EUR 10,000,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined excess of: EUR 10,000,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined
Layer 5)	EUR 15,000,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined excess of: EUR 20,000,000 or the equivalent in any other currency each and every loss and/ or series of losses arising out of one event, as defined This layer additionally provides coverage for one single additional limit each for Layers 1 to 4 in the event that the full reinstatements for each layer have been exhausted.
Layer 6)	Aggregate Excess of Loss To pay up to EUR 3,300,000 or the equivalent in any other currency of losses in the Aggregate excess of: EUR 700,000 or the equivalent in any other currency in the Aggregate LOSSES RECOVERABLE HEREUNDER Only losses otherwise recoverable under the deemed layers:

EUR 150,000 each and every loss and/ or series of losses arising out of one event, as defined excess of EUR 100,000 each and every loss and/ or series of losses arising out of one event, as defined (in respect of all companies listed in Attachment 4, }

and

EUR 250,000 each and every loss and/ or series of losses arising out of one event, as defined excess of EUR 250,000 each and every loss and/ or series of losses arising out of one event, as defined (in respect of all companies listed in Attachment 4)

shall apply to the aggregate deductible and limit hereon.

Reinstatement Provisions

This Excess of Loss Protection applies to the companies listed in the Attachment 4 on a **shared basis** as arranged in MARINE AND AVIATION EXCESS OF LOSS REINSURANCE TREATY RM1801-8/15 which forms an integral part of this protection.

Layer1) 6 free reinstatements.

Layer 2) 4 free reinstatements.

Layer 3) 4 free reinstatements.

Layer 4) 2 free reinstatements.

Layer 5) 1 free reinstatement.

In the event of the aggregate limit being exhausted on Layers 1 to 4 the reinstatement capacity provided under Layer 5 may be used as one additional free reinstatement on each of the underlying layers.

Conditions

Full Wording, as detailed in:
Attachment 1 Applicable to all business
Attachment 2 Applicable to Marine business
Attachment 3 Applicable to Aviation business

In case of any conflict between clauses where a loss affects both the Marine and Aviation Accounts, the Reinsured has the option to choose whichever clause is deemed to be more specific to the loss.

Clauses applicable to all lines of business covered

Attachment 1

1. Reinsurance Clause
2. Event Clause
3. Overlapping Period
4. War
5. Inspection of Records
6. Termination
7. Notice of Claims
8. Reinstatement
9. Currency
10. Currency Fluctuation Clause
11. Run-off
12. Arbitration
13. Amendments and Alterations

14. Contract Re-Denomination Clause
15. Errors and Omissions Clause
16. Premium Adjustment Clause
17. Sanction Limitation and Exclusions Clause
18. Third Party Non-Enforceable Term Clause
19. Transfer of Reinsurer's Obligations Clause
20. Collusion Clause
21. Insolvency Clause
22. Aggregate Clause
23. Interlocking Clause
24. Protection of Personal Data.

In respect of Marine Business underwritten

Attachment 2

1. Net Loss
2. Nuclear Energy Risks Exclusion
3. Seepage and Pollution Exclusion
4. Extra-Contractual Obligations Exclusion
5. Extra-Contractual Obligations Inclusion
6. Aggregate Voyage Extension Clause (Cargo)
7. Liability Exclusion Clause - B
8. Refinery Exclusion Clause
9. Political Risk, Financial Guarantee and Credit Risk Exclusion Clause
10. Terrorism Exclusion Clause
11. Terrorism Write Backs
12. Cyber Attack Exclusion
13. Institute Radioactive Contamination, Chemical, Biological, Bio-chemical and Electromagnetic Weapons Exclusion Clause (10/11/03 CL370) and USCAN B Endorsement (29/01/04)
CL 370 shall be paramount and shall override anything contained in this insurance inconsistent therewith, other than the provisions of the USCAN B Endorsement as attached
14. Joint Excess of Loss Committee Information Technology Hazards.

In respect of Aviation business underwritten

Attachment 3

1. Ultimate Net Loss Clause {12/00 LSW315A}
2. Loss Settlements Clause (12/00 LSW332A)
3. Nuclear and Radioactive Contamination Exclusion Clause (11/96 LSW359A)
4. Nuclear Risks Exclusion Clause (AVN38B - 22.7.96)
5. Extra Contractual Obligations Clause {01/92 LSW327}
6. Seepage and Pollution Clause {03/06 LSW1593}
7. War Hijacking and Other Perils Reinsurance Clause (including limited Hull and Spare Parts Cover) (12/03 LSW1158A)
8. Aviation Date Recognition (Reinsurance) Clause (LSW1036)
9. Space Exclusion Clause (12/00 LSW345A)
10. Residual Value Insurance Exclusion Clause (11/1992 LSW346)
11. Aviation Grounding Liability Clause (LSW1082)
12. Asbestos Exclusion Clause (LSW1570) in respect of risks incepting on or after 1st January 2009
13. Directors and Officers Liability Exclusion Clause (01/92 LSW326)
14. Non-Aviation Liability Reinsurance Clause (03/06 LSW1592)
15. Aviation Authority Test Flight Clause (AVN110 15/09/10)

Special Acceptances All special acceptances preconditioned by the agreement of the Broker (RFIB contacts: see Attachment 5) to be agreed by the Reinsurer.

Premium

A Minimum and Deposit Premium of:

EUR 78,420

Each amount payable in four equal instalments at 15th February 2025, 15th May 2025, 15th August 2025, 15th November 2025.

Adjustable at 9.20% the rate stated below of the Reinsured's Gross Net Premium Income in respect of the business covered hereunder and accounted for during the period hereon for all years of account.

Total rate: 9.20%

Expected premium income: EUR 995,000

Notices

Terminology Clarification Notice

For the purposes of this Treaty, where established market referenced clauses are included herein, terminology is maintained as utilized in such issued clauses. However, where necessary, the interpretation of the parties or form of documentation stated in the text of the referenced clause shall be considered within the context of this Treaty.

Dispute Resolution

Where any dispute or difference between the parties arising out of or in connection with this Treaty including formation and validity and whether arising during or after the period of this Treaty has not been settled through negotiation, both parties agree to try in good faith to settle such dispute by non-binding mediation, before resorting to arbitration in the manner set out below.

Choice of Law And Jurisdiction

This Treaty shall be governed by and is construed in accordance with the law of the United States in all respects.

Any dispute or matter which requires reference to a court arising out of or relating to an arbitration, or falling outside the scope of the Arbitration Clause, shall be submitted to the exclusive jurisdiction of the courts of the U.S..

Information

Shares in Excess of Normal Maximum Lines may be protected on a Reporting Excess of Loss basis or by Facultative Reinsurance arranged on a similar basis, subject to Special Acceptance by NewYork Re.

The cover provided by this programme is shared with companies listed in the Attachment 4 as arranged in *MARINE AND AVIATION EXCESS OF LOSS REINSURANCE TREATY RM1801-8/15* forming an integral part of this protection.

This protection applies only to that scope of losses that can be retroceded by the Reinsurer (VIG Re) into the *MARINE AND AVIATION EXCESS OF LOSS REINSURANCE TREATY RM1801-8/15*.

In case of an Ultimate Net Loss from a Loss Occurrence exceeding the available retrocession capacity of the *MARINE AND AVIATION EXCESS OF LOSS REINSURANCE TREATY RM1801-8/15*, the Ultimate Net Loss of the Reinsured will be indemnified only partially, in the same proportion which applies between the available retrocession capacity and the capacity which would be needed to cover the entire Ultimate Net Loss from such a Loss Occurrence.

The EUR 800.000 Deductible in the Aggregate Excess of Loss for Layer 6 as stated in the *MARINE AND AVIATION EXCESS OF LOSS REINSURANCE TREATY RM1801-8/15* applies only between VIG Re and the Retrocession Reinsurers.

Share of the Reinsurer 100%

IN WITNESS WHEREOF, the parties hereto have caused this Treaty to be executed by their duly authorised representatives as of the following dates:

In _____

for and on behalf of
Biscaya Versicherung
Munich, Germany
(the Reinsured):

23.11.2024

and in New York, _____

for and on behalf of
New York Re
New York, United States of
America
(the Reinsurer):

17B-i

Head of Department
Non-Life Underwriting

Treaty Underwriter

ATTACHMENT 1

Clauses applicable to all lines of business covered

1. Reinsurance Clause

- 1.1 In consideration of the premium to be paid to the Reinsurer by or on behalf of the Reinsured, the Reinsurer hereon shall reimburse the Reinsured to the extent that its net loss (as defined in Clause 1 Attachment 2 for Marine business and Clause 1 Attachment 3 for Aviation business) under business reinsured by this Treaty exceeds the retention of the Reinsured but only up to the limit of reimbursement. Such business is as fully described in the Risk Details which forms an integral part of this Treaty.
- 1.2 The period of reinsurance, the retention of the Reinsured, the limit of reimbursement, the premium and other matters are as fully described in the Risk Details.
- 1.3 This Treaty is subject to all limits, terms, conditions and exclusions contained herein and in the Risk Details.
- 1.4 It is a condition precedent to liability under this Treaty that settlement by the Reinsured shall be in accordance with the terms, conditions and exclusions of the original policies or contracts.

2. Event Clause

- 2.1 "Loss" under this Treaty means loss, damage, liability or expense or a series thereof arising from one event, "Loss" does not include the Reinsured's office and salary expenses.
- 2.2 Where the Reinsured is liable under "losses discovered" policies, liability under this Treaty shall be determined by treating the loss as arising on the date of discovery of the loss by the direct Insured.
- 2.3 Where the Reinsured is liable under "claims made" policies, liability under this Treaty shall be determined by treating the loss as arising on the date when the circumstance giving rise to a claim is first notified to the direct Insurer.

3. Overlapping Period

- 3.1 If at the inception date shown in the Risk Details an event is in progress, no loss arising from that event shall be treated as occurring during the currency of this Treaty.
- 3.2 If at the expiry date shown in the Risk Details an event is in progress, all losses arising from that event shall be treated as occurring during the currency of this Treaty.

4. War

- 4.1 This Treaty excludes loss, damage, liability or expense arising from war or civil war.
- 4.2 Notwithstanding the foregoing, if this Treaty shall be extended to include loss, damage, liability or expense arising from war and civil war as covered in the original policies provided that such loss, damage, liability or expense would be recoverable:
 - 4.2.1 under the terms and conditions of the relevant Institute War and Strikes Clauses or relevant London aviation clauses and/or market equivalent in current use at the inception of this Treaty, or at the time when war risks cover would have commenced under the direct policies within the terms of such clauses, whichever is the earlier.

5. Inspection of Records

As far as legally permitted, the Reinsured's books and records shall be open to inspection by authorized representatives of the Reinsurer at any reasonable time during the existence of this Treaty or of any liability hereunder. In case the Reinsurer intends to inspect the Reinsured's records a reasonable notice of at least 30 days has to be given to the Reinsured.

6. Termination

War -Automatie termination

6.1 If war (whether declared or not) arises between the countries in which the Reinsured and the Reinsurer reside or carry on business or are incorporated, this Treaty shall be automatically terminated forthwith.

Termination for other reasons

6.2 If performance of any part of this Treaty is prohibited or rendered impossible in consequence of any law or regulation in any country or territory, or if any law or regulation shall prevent directly or indirectly the remittance of any payment due to or from either party, the party so constrained shall give immediate written advice thereof to the other party, who shall have the right either to terminate this Treaty forthwith or exclude from its protection all business to which the law or regulation applies.

6.3 Either party may terminate this Treaty immediately by giving the other party written notice if either:

6.3.1 becomes insolvent, suspends payment of debts, convenes a meeting of or enters into any agreement with creditors, loses the whole or any part of its paid up capital, has a receiver appointed or a petition presented for its liquidation, or has a resolution passed for its voluntary liquidation;

6.3.2 passes under the control of, is absorbed by or amalgamated with any other body corporate or unincorporate, is nationalised or becomes controlled by the government of the country in which it is incorporated or in which it has its principal office, or agrees to any arrangement whereby it ceases to have a separate existence.

6.4 Notice of termination shall be confirmed by registered post.

6.5 Termination of this Treaty shall not relieve either party of its prior rights and obligations.

7. Notice of Claims

The Reinsured shall give prompt notice to the Reinsurer of any loss which it has reason to believe may lead to a claim under this Treaty.

8. Reinstatement

8.1 When any loss is settled hereunder in part or in whole, the amount of such loss shall be automatically reinstated from the date of such loss in accordance with the terms shown in the Risk Details.

8.2 If premium under this Treaty is subject to adjustment, any reinstatement premium due hereunder shall be paid provisionally at the time settlement is effected as if the deposit premium represented the final earned premium hereunder. Thereafter, the reinstatement premium shall be adjusted in the same manner as, and simultaneously with any adjustment of the deposit premium to, the final earned premium due hereunder.

9. Currency

All transactions hereunder shall be in Euros (EUR).

All Premiums received by the Reinsured in currencies other than EUR shall be converted into EUR at the rate adopted by the Reinsured for the purposes of their own account.

All Claims shall be converted into EUR at the rate of exchange on the date of settlement (meaning payment) by the Reinsured.

10. Currency Fluctuation Clause

1. In the event the Reinsured sustains losses in a currency other than Euro the Reinsurer's liability shall be calculated as follows:
 - a) The underlying loss of the Reinsured and the limit of indemnity of the Reinsurer as expressed in Euro shall be converted into the currency concerned, at the rate of exchange ruling on the inception date of this Reinsurance, in the Reinsured's books.

and
 - b) The balance of any loss payment in excess of the Reinsured's underlying loss shall be converted from the currency in which the loss was settled into Euro at the rate of exchange used by the Reinsured and ruling on the date or dates of settlement of the loss by the Reinsured.
2. In the event losses are sustained by the Reinsured in respect of the same loss in more than one currency these shall be converted into the major currency involved for the purposes of establishing the underlying loss of the Reinsured and the limit of indemnity of the Reinsurer. The proportion of the claim in each currency paid by the Reinsurer shall be the same as that established in computing the overall claim, and such amounts shall be converted into Euro at the rate of exchange used by the Reinsured and ruling on the date of settlement of the loss by the Reinsured.

11. Run-off

Should the Reinsured cease to underwrite the business reinsured hereunder then, subject to agreement by the Reinsurer before expiry of this Treaty, a twelve month extension of cover may be granted, at terms to be agreed, for loss under business underwritten before expiry of, and within the scope of, this Treaty. No such cover shall be provided if the Termination Clause (Clause 6 Attachment 1) has been invoked.

12. Arbitration

- 12.1 The parties agree that prior to recourse to courts of law any dispute between them concerning the provisions of this Treaty shall first be the subject of arbitration.
- 12.2 The following arbitration procedure shall be used in any dispute concerning this Treaty, and shall exist as a separate contract if there is a dispute over the validity or formation of the Treaty.
- 12.3 Unless the parties agree upon a single arbitrator within thirty days of one receiving a written request from the other for arbitration, the claimant (the party requesting arbitration) shall appoint an arbitrator and give written notice thereof to the respondent. Within thirty days of receiving such notice the respondent shall appoint an arbitrator and give written notice thereof to the claimant, failing which the claimant may apply to the appointor hereinafter named to nominate an arbitrator on behalf of the respondent.
- 12.4 Before the commencement of arbitration proceedings the two arbitrators shall appoint a third arbitrator who shall act as chairman of the tribunal. Should they fail to appoint such a third arbitrator within thirty days of the appointment of the respondent's arbitrator then either of them or either of the parties may apply to the appointor for the appointment of the third arbitrator. The arbitrators appointed by the parties in dispute shall decide the verdict: if they cannot agree, they shall seek the verdict of the chairman of the tribunal, which shall prevail.
- 12.5 Unless the parties otherwise agree the arbitration tribunal shall consist of persons with not less than ten years' experience of insurance or reinsurance.
- 12.6 The arbitration tribunal shall have power to fix all procedural rules for the holding of the arbitration including discretionary power to make orders as to any matters which it may consider proper in the

circumstances of the case with regard to pleadings, discovery, inspection of the documents, examination of witnesses and any other matter whatsoever relating to the conduct of the arbitration and may receive and act upon such evidence whether oral or written strictly admissible or not as it shall in its discretion think fit.

- 12.7 The appointor shall be the Chairman of the U.S. Chamber of Commerce.
- 12.8 All costs of the arbitration shall be at the discretion of the arbitration tribunal who may direct to and by whom and in what manner they shall be paid.
- 12.9 The seat of the arbitration shall be in New York and the arbitration tribunal shall apply to the laws of the United States as the proper law of this Treaty.
- 12.10 The award of the arbitration tribunal shall be in writing and binding upon the parties who covenant to carry out the same. If either of the parties should fail to carry out any award the other may apply for its enforcement to a court of competent jurisdiction in any territory in which the party in default is domiciled or has assets or carries on business.

13. Amendments and Alterations

It is hereby understood and agreed that any amendments and/or alterations to this Treaty that are agreed, either by correspondence and/or Treaty Endorsements, shall be automatically binding hereon and unless otherwise agreed by the parties hereto shall be formally documented by an exchange of correspondence signed by the parties or by the issue of a Treaty Addendum which shall be considered to form an integral part hereof

14. Contract Re-Denomination Clause

1. In relation to all sums defined in or in connection with this Treaty, where:
 - a) there has been a request by the Insured/ Reinsured; and
 - b) a national currency has commenced legal transition to the euro currency unit
 - c) such sums will instead be read as euro sums within the fixed legal conversion rates applied.
2. The provisions of this clause shall apply with effect from the date of such request.

15. Errors and Omissions Clause

It is hereby declared and agreed that any inadvertent delays, omissions or errors made in connection with this Reinsurance shall not be held to relieve either of the parties hereto from any liability which would have attached to them hereunder if such delay, omission or error had not occurred provided that rectification is made upon discovery.

16. Premium Adjustment Clause

As soon as reasonably practicable after the expiry of this Reinsurance the Reinsured shall submit a statement of their actual Gross Net Premium Income as defined herein and the premium hereon shall be adjusted at the rate mentioned herein subject, however, to the Minimum Premium contained herein. Should the premium so calculated exceed the Minimum and Deposit Premium herein that excess amount will become immediately payable to the Reinsurer.

All currencies other than EUR shall be converted into EUR at the rates of exchange as used by the Reinsured for the purposes of its own account.

The term "Gross Net Premium Income" shall be understood to mean gross premiums less policy taxes and similar deductions, cancellations and return premiums, and less premiums given off by way of reinsurance, recoveries under which inure to the benefit of the Reinsurer hereon, and after deduction of premium in respect of business excluded from the protection of this Reinsurance.

17. Sanction Limitation and Exclusion Clause

If performance of the whole or any part of this reinsurance Treaty breaches an embargo or sanctions programme arising from any law or regulation applicable to the Reinsured, then as a consequence thereof, the Reinsurer concerned shall not fulfil its obligations under this reinsurance Treaty to the extent that such would be in breach of the relevant law or regulation.

18. Third Party Non-Enforceable Term Clause

Nothing in this Treaty is intended to confer any benefit on any third party and no term in this Treaty is intended to be enforceable by any person who is not party to this Treaty.

19. Transfer of Reinsurer's Obligations Clause

The transfer of contractual obligations by the Reinsurer to third parties is legally effective only after explicit written approval by the Reinsured. This regulation includes Run-Off agreements after termination of the Treaty period.

In case transfer of obligations by the Reinsurer to a third party is sanctioned or decreed by a law or a court decision, the Reinsured has the binding right to request an adequate commutation of the underlying share.

Regulations stated in the second paragraph are only valid for transfer of obligations to third parties who dispose of an Insurer Financial Strength Rating by Standard & Poors Rating Group or A.M.Best Company inferior to the Reinsurer's Insurer Financial Rating Strength Rating.

20. Collusion Clause

- 20.1 The Reinsured may aggregate settlements of losses to any single direct Insured which arise from infidelity or fraud committed by any person acting alone or by persons acting in collusion, whether incurred in respect of
 - 20.1.1 claims on direct policies, or
 - 20.1.2 under the terms of any reinsurance.
- 20.2 Such settlements may not be aggregated under this Treaty if they have been settled
 - 20.2.1 as separate losses under the direct policies, or
 - 20.2.2 under separate direct policy years.
- 20.3 Nevertheless, settlements defined under 20.2.2 shall be admissible for that portion of loss which is attributable to any one policy year.
- 20.4 The date of loss shall be determined by treating the loss as arising on the date of first discovery of loss by the direct Insured.
- 20.5 For the purposes of this clause, a binding authority, cover or open policy shall not be treated as a direct insurance policy but a specific declaration made under it in the ordinary course of business shall be treated as a direct insurance policy.

21. Insolvency Clause

- 21.1 Where an insolvency event occurs in relation to a Reinsured the following terms shall apply (and, in the event of any inconsistency between these terms and any other terms of the Treaty, these terms shall prevail):
 - 21.1.1. Notwithstanding any requirement in this Treaty that a Reinsured shall actually make payment in discharge of its liability to its policyholder before becoming entitled to payment from the Reinsurer:

21.1.1.1 the Reinsurer shall be liable to pay the Reinsured even though the Reinsured is unable to actually pay, or to discharge its liability to, its policyholder; but

21.1.1.2 nothing in this clause shall operate to accelerate the date for payment by the Reinsurer of any sum which may be payable to the Reinsured, which sum shall only become payable as and when the Reinsured would have discharged, by actual payment, its liability for its current net loss but for it being the subject of an insolvency event.

21.1.2 The existence, quantum, valuation and date for payment of any sums which the Reinsurer is liable to pay the Reinsured under this Treaty shall be those and only those for which the Reinsurer would be liable to the Reinsured if the liability of the Reinsured had been determined without reference to any term in any composition or scheme of arrangement, entered into between the Reinsured and all or any part of its policyholders unless and until the Reinsurer serves written notice to the contrary on the Reinsured in relation to any composition or scheme of arrangement.

21.1.3 The Reinsurer shall be entitled (but not obliged) to set off, against any sum which it may be liable to pay the Reinsured, any sum for which the Reinsured is liable to pay the Reinsurer.

21.2 An insolvency event shall occur if:

21.2.1 (in relation to 21.1.1, 21.1.2 and 21.1.3 above) a winding up petition is presented in respect of the Reinsured or a provisional liquidator is appointed over it or if the Reinsured goes into administration, administrative receivership or receivership or if the Reinsured has a scheme of arrangement proposed in relation to all or any parts of its affairs; or

21.2.2 (in relation to 21.1.1 above) if the Reinsured goes into compulsory or voluntary liquidation;

21.2.3 or, in each case, if the Reinsured becomes subject to any other similar insolvency process (whether under the laws of England and Wales or elsewhere)

and

21.2.4 the Reinsured is unable to pay its debts as and when they fall due within the meaning of section 123 of the Insolvency Act 1986 (or any statutory amendment or re-enactment of that section).

22. Aggregate Clause

The Reinsured may include in his Net Loss his proportion of a "one loss occurrence" in respect of policies on an aggregate excess basis such proportion being determined by ascertaining the percentage which such individual loss occurrence bears to the total amount of the aggregate losses involved and applying such percentage to the amount paid or payable by the Reinsured. Such calculations to be based on the figures available at the time the Reinsured settles the original claim, subject to any subsequent readjustment.

23. Interlocking Clause

In the event of a loss or series of losses arising from one event affecting policies written in more than one of the reinsured companies (as set out in the REINSURED section) then the total of the retained loss shall be apportioned to the applicable reinsured companies in the proportion that the original loss of each company bears to the total amount of the loss.

Reinsurers shall bear the excess thereof on the claims relating to each reinsured company, notwithstanding that the Reinsured's retained loss relating to any one office may thereby be reduced below the amount as agreed hereon.

24. Protection of Personal Data.

1. It is the responsibility of the cedent and the reinsurer to make sure that any law and regulations for the

protection of personal data of insurance holders applicable to the cedent and applicable to the reinsurer are observed.

2. Any personal data of insurance holders that will be transmitted from the cedent to the reinsurer will be processed by the reinsurer only subject to the following purposes:
 - a) Assessment of single risks and single claims
 - b) Consultancy and support of the cedent in the field of risk- and claim assessment, as well as the assessment of processes.
 - c) Assessment of the scope of reinsurance including the determination of the reinsurer's liability for single risks (control of accumulation risks) as well as for the purpose of reinsurance accounting.
 - d) Supervision and inspection by random of the risk- and claims assessment performed by the cedent as far as the liability of the reinsurer is concerned.
 - e) Compliance of reporting of data to the respective supervisory authority
3. The reinsurer is obliged to apply adequate technical and organisational measures in accordance with the principles of IT security in order to protect personal data of insurance holders.

ATTACHMENT 2

Clauses in respect of Marine business only

Including Strikes, Riots, Civil Commotions, Malicious Damage, Confiscation, Nationalisation, Requisition, Expropriation and Risks of a similar nature.

Excluding War on Land.

1 Net Loss

- 1.1 "Net loss" under this Treaty means the sum actually paid by the Reinsured in discharge of its liability for loss (as defined in Clause 2 Attachment 1) after deduction of all salvage and recovery.
- 1.2 "Payment" in these clauses requires that funds have been transferred by the payer, with "paid" being construed accordingly.
- 1.3 The Reinsurer shall not be obliged to reimburse the Reinsured unless and until (and then only to the extent that) the Reinsured has discharged, by actual payment, its liability for its current net loss.
- 1.4 The Reinsured may claim on the basis of its current net loss, notwithstanding that the net loss may vary in future as a result of further relevant payments made or received by the Reinsured.
- 1.5 Where salvage, recovery or other payment is received or recovered by the Reinsured after a payment by the Reinsurer under this Treaty, the reimbursement shall be adjusted as if such receipt or recovery occurred before the payment by the Reinsurer was made.
- 1.6 Liability of the Reinsurer hereon in respect of any loss hereunder shall not be increased by the Reinsured's failure to collect any amount due from any other Reinsurer.

2 Nuclear Energy Risks Exclusion

- 2.1 This Treaty excludes nuclear energy risks whether written directly or by way of reinsurance or via pools or associations. Under this Treaty the term "nuclear energy risks" means any first or third party insurance (other than workers' compensation or employers' liability) in respect of:
 - 2.1.1 nuclear reactors and nuclear power stations or plant;
 - 2.1.2 any other premises or facilities concerned with
 - 2.1.2.1 the production of nuclear energy or
 - 2.1.2.2 the production or storage or handling of nuclear fuels or nuclear waste;
 - 2.1.3 any other premises or facilities eligible for insurance by any local nuclear pool or association but only to the extent of the requirements of the local pool or association;
 - 2.1.4 nuclear or radioactive fuel, or nuclear or radioactive waste.
- 2.2 However, this exclusion shall not apply:
 - 2.2.1 to any insurance or reinsurance in respect of the construction, erection or installation of buildings, plant and other property (including contractor's plant and equipment used in connection therewith):
 - 2.2.1.1 for the storage of nuclear fuel - prior to the commencement of storage
 - 2.2.1.2 as regards reactor installations - prior to the commencement of loading of nuclear fuel into the reactor, or prior to the initial criticality, depending on the commencement of the insurance or reinsurance of the relevant local nuclear pool or association;
 - 2.2.2 to any machinery breakdown or other engineering insurance or reinsurance not coming within the

scope of 2.2.1 above, nor affording coverage in the "high radioactivity" zone;

2.2.3 to any insurance or reinsurance in respect of the hulls of ships, aircraft or other conveyances;

2.2.4 to any insurance or reinsurance in respect of loss of or damage to (including any expenses incurred therewith) nuclear or radioactive fuel or nuclear or radioactive waste while in transit or storage as cargo, other than while being processed or while in storage at the reactor installation or any other final destination concerned with production, storage or handling of nuclear fuel or nuclear waste.

JAPANESE AMENDMENT 1st April 1989

Notwithstanding clause 2.2.4. this contract extends to cover nuclear fuels in transit when reinsured from Japanese insurance or reinsurance companies (including any subsequent protection of such risks) during the periods before shipment and at final destination until expiry of the original cargo policy, but limited to sixty days storage at the power station or reactor installation. The cover granted by this extension includes business reinsured from the Japanese market by companies owned or operating in Japan but excludes business originally insured in other markets and subsequently reinsured into Japanese market.

It is further agreed that yellowcake U308 (triuranium octoxide) is not a nuclear fuel for the purpose of recovery under such contracts, but remains subject to the process exclusion while being converted. The terms of the original policies are understood to provide for expiry of cover when the goods are hung on storage racks for nuclear fuels, normally within two weeks of arrival at the power station or reactor installation but not exceeding sixty days.

3 Seepage and Pollution Exclusion

3.1 This Treaty excludes claims in respect of liability incurred by any direct assured for seepage, pollution or contamination

3.1.1 on or over land or inland waters unless caused by a sudden event or insured on a sudden and accidental basis;

3.1.2 caused by intentional or deliberate disposal or dumping of waste.

3.2 Nevertheless, claims in respect of the following shall not be excluded by this clause:

3.2.1 control of well policies where such seepage, pollution or contamination follows a well out of control above the surface of the ground or waterbottom;

3.2.2 liability

3.2.2.1 liability imposed on the direct insurer by any statute designed to protect the marine environment provided the direct insured was obliged by statute or statutory instrument or equivalent to have such insurance;

3.2.2.2 liability accepted by the direct insured under the terms of the Offshore Pollution Liability Agreement (OPOL) or equivalent

3.2.2.3 for seepage, pollution or contamination from or caused by vessels, craft or their cargoes

3.2.2.4 under aviation policies subject to clauses no less restrictive than AVN 46B;

3.2.3 general average.

4 Extra-Contractual Obligations Exclusion

4.1 This Treaty excludes all cover in respect of extra-contractual obligations. The term "extra-contractual obligations" under this Treaty means any award made by a court of competent jurisdiction against an

Insurer or Reinsurer, where that award is not within the cover granted by any insurance or reinsurance contract made between the parties in dispute.

4.2 Notwithstanding the above this Treaty shall not exclude any part of a claims related extra-contractual obligation loss incurred under the terms of proportional or non-proportional reinsurance unless such reinsurance is effected solely to cover extra-contractual obligations. A "claims related extra-contractual obligation" under this Treaty means the amount awarded against an Insurer or Reinsurer found liable by a court of competent jurisdiction to pay damages to an Insured or Reinsured in respect of the Insurer's or Reinsurer's conduct of a claim made against it under any policy or contract where such liability has arisen because of:

4.2.1 the failure of the Insurer or the Reinsurer to agree or pay a claim within the policy limits or to provide a defence against such claims as required by law, or

4.2.2 bad faith or negligence in rejecting an offer of settlement, or

4.2.3 negligence or breach of duty in the preparation of the defence or the conduct of a trial or the preparation or prosecution of any appeal or subrogation or any subsequent action arising therefrom.

4.3 Any additional cover against extra-contractual obligations shall only be under the terms of Extra-Contractual Obligations Inclusion Clause printed below.

5 Extra-Contractual Obligations Inclusion Clause

5.1 Notwithstanding Clause 4 Attachment 2, this Treaty shall extend to cover any loss arising from a claims related extra-contractual obligation as defined above either

5.1.1 awarded against the Reinsured, or

5.1.2 incurred by the Reinsured where it has paid its proportionate share of a claims related extra-contractual obligation

5.1.2.1 awarded against one or more of its coinsurers or

5.1.2.2 arising from its participation in a proportional reinsurance, or

5.1.3 incurred by the Reinsured under the terms of any non-proportional reinsurance provided that the insurance or reinsurance policy or contract giving rise to the extra-contractual obligation award falls within the scope of this Treaty.

5.2 There shall be no liability under this Treaty in respect of

5.2.1 any assumption of liability by way of participation in any mutual scheme or insurance or reinsurance designed to cover extra-contractual obligations only, or

5.2.2 any extra-contractual obligation arising from the fraud of a director, officer or employee of the Reinsured acting individually or collectively or in collusion with an individual or corporation or with any other organisation or party involved in the presentation defence or settlement of any claim.

5.3 The Reinsurers' liability hereunder in respect of any one such loss is subject to the terms, conditions and exclusions of this Treaty, and shall not exceed the limit of reimbursement provided herein in respect of each loss. Furthermore, the following specific provisions shall take precedence in the event of any inconsistency.

- 5.4 Any payment of claims related extra-contractual obligations shall for the purpose of this Treaty be deemed to be a loss arising from the same event as that giving rise to the claim to which the extra-contractual obligation award is related.
- 5.5 Any recovery under this Treaty in respect of claims related extra-contractual obligations shall only be for that part of any award which corresponds to the Reinsured's pro-rata share of the insurance or reinsurance policy or contract giving rise to the award, and all proportional and non-proportional protection effected by the Reinsured shall provide or be deemed to provide pro-rata coverage for such obligations.

6 Aggregate Voyage Extension Clause (Cargo)

- 6.1 The Reinsured may, if it requires, aggregate cargo losses of the same nature (including liability for such loss or damage and related expenses including general average contribution, salvage charges and expenses incurred to avert or minimise such loss or damage) and treat them as losses arising from one event provided that
- 6.1.1 it is not possible to determine the quantum of loss applicable to separate events, and that
 - 6.1.2 such losses are in respect of cargo carried in the same vessel for the same or an overlapping voyage.
- 6.2 The date of loss in such cases shall be deemed to be the date of arrival at the port of discharge of such cargo or the date of discovery of loss if earlier. If such cargo is discharged at more than one port, the date of loss shall be deemed to be the date of arrival at the first port of discharge or the date of discovery of loss if earlier.
- 6.3 Claims paid by the Reinsured in respect of any interests other than cargo as described above are specifically excluded from the protection afforded by this clause.
- 6.4 The Reinsurers' liability hereunder in respect of any one such aggregate loss is subject to the terms, conditions and exclusions of this Treaty, and shall not exceed the limit of reimbursement provided herein in respect of each loss.

7 Liability Exclusion Clause - B

- 7.1 This Treaty excludes claims in respect of sums which any direct Insured becomes liable to pay to any other party, unless arising from those policies underwritten by the direct insurer on a "claims made" or "losses discovered" basis, and then only where the claim, or notification of the event giving rise to the claim, is "made" or loss "discovered" during the period of this Treaty.
- 7.2 Notwithstanding the foregoing this clause shall not exclude claims arising from
- 7.2.1 the ownership, management, operation or chartering of marine or inland waterway vessels, craft or units;
 - 7.2.2 the construction, repair or demolition of marine or inland waterway vessels, craft or units and all related components;
 - 7.2.3 operations in respect of bridges, tunnels, seawalls, marine terminals, ports, harbours, wharves, piers, jetties, docks, berths, pontoons, marinas, fish farms, stevedores, divers, marine agents and boat dealers;
 - 7.2.4 offshore exploration, drilling or production, including all related construction operations;
 - 7.2.5 construction, refurbishment, conversion or demolition, but in respect of onshore risks;
 - 7.2.6 the ownership, management or operation of aircraft or airports;

- 7.2.7 construction of aircraft and all related components;
- 7.2.8 transit, and storage in the ordinary course of transit, of cargo by sea or air, and by land conveyance other than pipeline;
- 7.2.9 onshore workers' compensation or employers' liability losses arising from the following perils:

fire, lightning, explosion, structural collapse, windstorm, hail, flood, seismic activity, volcanic eruption, collision, riots, strikes, civil commotion, malicious damage;
- 7.2.10 any cover for physical loss, damage or consequential loss contingent thereon effected by a direct assured on behalf of another party.

7.3 Notwithstanding anything contained herein to the contrary, this Treaty excludes:

- directors' and officers' liability;
- liability under the Securities Exchange Act;
- professional indemnity and errors and omissions, unless directly related to:
 - owning or handling ships, cargoes or goods in transit;
 - classification societies or marine surveyors.

7.4 The Reinsurers' liability hereunder is subject to the terms, conditions and exclusions of this Treaty, and shall not exceed the limit of reimbursement provided herein in respect of each loss.

8 Refinery Exclusion Clause

- 8.1 Notwithstanding anything contained in this Treaty to the contrary, all claims which arise from onshore refineries, petrochemical or chemical plants and any installations within their boundaries, even while under repair, maintenance, extension or modification, after the initial handing over to the operators, are excluded. This exclusion shall not apply to any insurance or reinsurance in respect of the construction, erection or installation of buildings, plant or other property (including contractors' plant and equipment used in connection therewith) prior to the initial handing over of such refineries, petrochemical or chemical plants to the operators.
- 8.2 For the purposes of this clause jetties, wharves, berths, piers and docks shall be deemed to be outside the boundaries mentioned above. However, no cover for liabilities arising from the operations of jetties, wharves, berths, piers and docks in respect of onshore refineries, petrochemical or chemical plants and any installations within their boundaries shall be afforded hereunder.
- 8.3 Nevertheless claims (other than those liabilities in respect of onshore refineries, petrochemical or chemical plants and any installations within their boundaries even while under repair, maintenance, extension or modification after the initial handing over to the operators) arising from the following shall not be excluded by this clause:
 - 8.3.1 facilities for the processing, treatment or separation of gas provided that they are outside the boundaries of the onshore refineries, petrochemical or chemical plants;
 - 8.3.2 any field processing.

9 Political Risks, Financial Guarantee and Credit Risk Exclusion Clause

9.1 This Treaty excludes any loss, liability, damage or expense arising from the following:

- 9.1.1 All forms of Contract Frustration Business including but not limited to non-performance of contractual obligations, import and/or export embargo, non-ratification of contracts, exchange transfer, calling of bonds and guarantees and force majeure indemnities.
- 9.1.2 Default under a lease, or any other form of financing contract.
- 9.1.3 Inability of an Insured to recover funds or another consideration advanced under a contract to supply goods or services.
- 9.1.4 Any form of Financial Guarantee, Surety or Credit indemnity, other than Salvage Guarantees.
- 9.1.5 Confiscation, Nationalisation, Expropriation, Deprivation, unless such losses would be recoverable under the Institute War Clauses and/or the War sections of the relevant Institute War and Strikes Clauses or relevant London Aviation Clauses in current use at the inception of this Treaty, or at the time when war risks cover would have commenced under the original insurance within the terms of these clauses, whichever is the earlier; except that if the risks of war are covered in the original policy(ies) under clauses approved by the London Hull War Risks Joint Sub-Committee, or in respect of cargo interests under the Standard War Risks clause of any country which complies with the limitations of the United Kingdom Waterborne Agreement, the foregoing proviso shall not apply.
- 9.1.6 The departure of the Insured's and/or project management personnel from any country, project or site in circumstances where:
 - 9.1.6.1 such personnel have been advised by their own Government(s) (or officially accredited representative(s) thereof) to evacuate the country or region thereof;
 - or
 - 9.1.6.2 The Insured's most senior manager in any country (or if absent, his appointed deputy) has determined that conditions local to any project or site have reached a state of political instability which could reasonably be interpreted as endangering the lives and/or physical well-being of such personnel and has issued instructions for their evacuation.
- 9.2 Notwithstanding the aforementioned it is understood and agreed that exclusion 9.1.6 shall not apply where coverage has been provided on an incidental basis as part of a (cargo and/or specie) package policy underwritten on an inclusive policy wording.

10 Terrorism Exclusion Clause

- 10.1 This Treaty excludes any loss, damage, liability or expense arising from:
 - 10.1.1 terrorism; and or
 - 10.1.2 steps taken to prevent, suppress, control or reduce the consequences of any actual, attempted, anticipated, threatened, suspected or perceived terrorism.
- 10.2 For the purpose of this clause, "terrorism" means any act(s) of any person(s) or organisation(s) involving:
 - 10.2.1 the causing, occasioning or threatening of harm of whatever nature and by whatever means;
 - 10.2.2 putting the public or any section of the public in fear,

in circumstances in which it is reasonable to conclude that the purpose(s) of the person(s) or organisation(s) concerned are wholly or partly of a political, religious, ideological or similar nature.

11 Terrorism Write Backs

11.1 The Terrorism Exclusion Clause shall not apply to the following:

11.1.1 Any loss, damage, liability, or expense arising from the operation, ownership, management, or chartering of:

11.1.1.1 Vessels, craft, and units, whilst offshore, afloat, under construction or repair, in dock, or in store ashore.

11.1.1.2 Seawalls, wharves, piers, jetties, docks, berths, pontoons, and associated dockside equipment all whilst within the confines of the port, terminal, shipyard, harbour, or marina.

11.1.1.3 Platforms, facilities, and associated equipment, whilst offshore, or whilst in, on or under any navigable waters, including all related construction or repair operations.

11.1.1.4 Pipelines and cables whilst offshore, or whilst in, on or under any navigable waters, (other than whilst in tunnels) including all related construction or repair operations whilst offshore, or whilst in, on or under any navigable waters.

11.1.2 Any loss, damage, liability or expense arising from the carriage, shipment or storage of:

11.1.2.1 Cargo and Specie in the ordinary course of transit in accordance with the Joint Cargo Committee Termination of Transit Clause (Terrorism) JC2001/056 and/or JC2009/056.

11.1.3 Losses where the proximate cause is theft.

11.1.4 Any loss, damage, liability or expense arising from the storage of cargo whilst afloat.

11.1.5 Fine Art Risks.

12 Cyber Attack Exclusion

12.1 Notwithstanding any other term of this contract save for Clause 12.2 below, in no case shall this Contract cover loss, damage, liability, or expense directly or indirectly caused by or contributed to or arising from the use or operation of an Information Technology Device as a means for inflicting harm.

12.2 Where this clause is endorsed on policies covering risks of war, civil war, revolution, rebellion, insurrection, or civil strife arising therefrom, or any hostile act by or against a belligerent power, or terrorism or any person acting from a political motive, Clause 12.1 shall not exclude losses which would otherwise be covered arising from the use of any Information Technology Device in the launch and/or guidance system and/or firing mechanism of any weapon or missile.

12.3 For the purposes of this clause, an Information Technology Device shall mean any computer system, hardware, software, programme, code, data, process, virus, information repository, microchip, integrated circuit or similar device in or connected with computer equipment or non-computer equipment, whether the property of a direct insured or not.

13 Institute Radioactive Contamination, Chemical, Biological, Bio-chemical and Electromagnetic Weapons Exclusion Clause

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith.

In no case shall this insurance cover loss damage liability or expense directly or indirectly caused by or

contributed to by or arising from:

- 13.1 ionising radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel;
- 13.2 the radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation, reactor or other nuclear assembly or nuclear component thereof;
- 13.3 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter;
- 13.4 the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter. The exclusion in this sub-clause does not extend to radioactive isotopes, other than nuclear fuel, when such isotopes are being prepared, carried, stored, or used for commercial, agricultural, medical, scientific or other similar peaceful purposes;
- 13.5 any chemical, biological, bio-chemical, or electromagnetic weapon.

10/11/03
CL370

USA/ CAN Endorsement

Noted and agreed that with effect from inception the respective USA and Canada endorsements (USCAN - B) is applicable hereon.

U.S.A. & CANADA ENDORSEMENT FOR THE INSTITUTE RADIOACTIVE CONTAMINATION, CHEMICAL, BIOLOGICAL BIO-CHEMICAL AND ELECTROMAGNETIC WEAPONS EXCLUSION CLAUSE (10/11/03) (29/01/04 - USCAN B)

This Treaty is subject to the Institute Radioactive Contamination, Chemical, Biological, Bio-Chemical And Electromagnetic Weapons Exclusion Clause 10/11/03 (RACCBE). The inclusion of RACCBE in this Treaty is material to underwriters' willingness to provide coverage at the quoted terms, conditions and rates.

It is the intent of the parties to give maximum effect to RACCBE as permitted by law.

In the event that any portion of RACCBE may be found to be unenforceable in whole or in part under the law of any state, territory, district, commonwealth or possession of the U.S.A., or any province or territory of Canada, the remainder shall remain in full force and effect under the laws of that state, territory, district, commonwealth or possession, province or territory. Further, any such finding shall not alter the enforceability of RACCBE under the laws of any other state, territory, district, commonwealth or possession of the U.S.A., or any province or territory of Canada, to the fullest extent permitted by applicable law.

In addition to the coverage afforded by the above endorsement (USCAN - B) the Institute Radioactive Contamination Exclusion Clause U.S.A. Endorsement USEN91 (and subsequent amendments), or the local market equivalent of USEN91, remains applicable to those original policies which contain such conditions.

RACE CONVENTION AMENDMENT

It is noted and agreed that the above paramount articles (RACE Clauses) shall not apply to liabilities arising under:

- a) the Federal Maritime Commission under Section 2 of US Public Law 89-777, and/or
- b) the International Conventions on Civil Liability for Oil Pollution Damage 1969 or 1992 and/or
- c) the International Oil Compensation Fund 1992 in connection with the Small Tanker Oil Pollution Indemnification Agreement (STOPIA), or the Tanker Oil Pollution Indemnification Agreement (TOPIA), and/or
- d) the International Convention on Civil Liability for Bunker Oil Pollution Damage, 2001, and/or
- e) the Athens Convention relating to Carriage of Passengers and their Luggage by Sea, 2002 and Guidelines for its implementation or Regulation (EC) No 392/2009 of the European Parliament and of the Council which gives effect thereto, and/or

- f) the Nairobi International Convention on the Removal of Wrecks 2007, and/or
- g) the United States of America Oil Pollution Act 1990, and/or
- h) the Maritime Labour Convention 2006, and/or
- g) any other Conventions and/or Protocols subsequently promulgated by the International Maritime Organisation (IMO), and entering into force within the period of this contract of reinsurance, subject to reinsurer's prior agreement,

and any binding amendments agreed thereto.

14 Joint Excess of loss Committee Technology Hazards

- 14.1 Loss, damage, liability or expense otherwise recoverable hereunder arising from loss of or damage to or a reduction or alteration in the functionality or operation of an Information Technology Device (hereafter an "IT Hazard") shall not be aggregated by reference to the IT Hazard or to any event directly or indirectly occasioning the IT Hazard.
- 14.2 The parties nevertheless agree that loss, damage, liability or expense otherwise recoverable hereunder arising from a single occurrence of any of the physical perils stated in 14.3, acting alone or in conjunction with another, shall be aggregated notwithstanding an IT Hazard was also a significant cause of the loss.
- 14.3 If such losses are caused directly by one or more of the physical perils that are otherwise covered by the treaty then this cause shall not prevent the aggregation of losses if otherwise permitted under the terms of this Treaty if they are caused by any such peril(s).
- 14.4 For the purposes of this clause, an Information Technology Device shall mean any computer system, hardware, software, programme, code, data, process, virus, information repository, microchip, integrated circuit or similar device in or connected with computer equipment or non-computer equipment, whether the property of a direct insured or not.

ATTACHMENT 3

Clauses in respect of Aviation business only

1. Ultimate Net Loss Clause

This Treaty applies only to that portion of any insurance or reinsurance which the Reinsured retain net for their own account and the calculation of the ultimate net loss hereunder shall include all sums for which the Reinsured is liable in settlement of losses or liability after making deductions for all recoveries, all salvages and all claims upon other reinsurances except as provided herein, whether collected or not, and shall include Expenses. As used herein "Expenses" shall be defined as all legal or other costs incurred by the Reinsured in investigating, settling or contesting any claim, loss, alleged loss or coverage issue under, or in connection with any policy or any contract protected hereunder. "Expenses", shall however, exclude the salaries of employees and the office costs of the Reinsured. If the Reinsured successfully contests any claim, loss, alleged loss or coverage issue, then the related Expenses shall in themselves comprise the ultimate net loss subject always to the Priority and Indemnity as stated in the REINSURING CLAUSE.

All salvages, recoveries or payments recovered or received subsequent to a loss settlement under this Treaty shall be applied as if recovered or received prior to the aforesaid settlement and all necessary adjustments shall be made by the parties hereto. Provided always that nothing in this clause shall be construed to mean that losses under this Treaty are not recoverable until the Reinsured's ultimate net loss has been ascertained.

Recoveries under any underlying excess of loss reinsurance arrangements for the account of the Reinsured and in respect of any of the interests protected hereunder shall be disregarded when computing the ultimate net loss to the Reinsured and shall inure to their sole benefit.

The amount of the Reinsurers' liability hereunder in respect of any loss shall not be increased by reason of the inability of the Reinsured to collect from any other Reinsurers, whether specific or general, any amounts which may have become due from them whether such inability arises from the insolvency of such other Reinsurers or otherwise.

Notwithstanding the foregoing, reinsurances, if any, effected by any Treaty Reinsurers and/or Subsidiary and/or Insurers shall not be taken into account in computing the ultimate net loss in excess of which this Treaty attaches, nor in any way affect the amount recoverable hereunder.

12/00, LSW315A

2. Loss Settlements Clause

All loss settlements by the Reinsured including compromise settlements and the establishment of Funds for the settlement of losses shall be binding upon the Reinsurer, providing such settlements are within the terms and conditions of the original policies and/or contracts (or as provided for in the EXTRA CONTRACTUAL OBLIGATIONS CLAUSE and/or the ULTIMATE NET LOSS CLAUSE) and within the terms and conditions of this Treaty. However where the Reinsured act in the capacity as a leading underwriter on the business protected by this Treaty and are called upon to establish a Fund in respect of a loss or losses which may form the whole or part of a claim within the terms and conditions of this Treaty (including provisional collections in respect of claims which ultimately may not be recoverable hereon) such Fund shall only be binding upon the Reinsurers subject to prior notice being given an agreement obtained from the Reinsured hereon if this Treaty is affected by the establishment of such a Fund.

For the purposes of this clause the term the Reinsured shall be understood to mean those underwriters involved in negotiating the establishment of the Fund.

12/00, LSW332A

3. Nuclear and Radioactive Contamination Exclusion Clause

Each policy protected hereunder is deemed to be subject to a:

nuclear exclusion clause and the Aviation Radioactive Contamination Exclusion Clause (General) AVN38A or its equivalent

or

Nuclear Risks Exclusion Clause AVN38B or its equivalent.

11/96
LSW359A

4. Nuclear Risks Exclusion Clause

4.1. This Treaty does not cover:

- (i) Loss of or destruction of or damage to any property whatsoever or any loss or expense whatsoever resulting or arising therefrom or any consequential loss
- (ii) Any legal liability of whatsoever nature

Directly or indirectly caused by or contributed to by or arising from:

- (a) the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof;
- (b) the radioactive properties of, or a combination of radioactive properties with toxic, explosive or other hazardous properties of, any other radioactive material in the course of carriage as cargo, including storage or handling incidental thereto;
- (c) ionizing radiations or contamination by radioactivity from, or the toxic, explosive or other hazardous properties of, any other radioactive source whatsoever.

4.2. It is understood and agreed that such radioactive material or other radioactive source in paragraph 4.1(b) and (c) above shall not include:

- (i) depleted uranium and natural uranium in any form;
- (ii) radioisotopes which have reached the final stage of fabrication so as to be usable for any scientific, medical, agricultural, commercial, educational or industrial purpose.

4.3. This Treaty, however, does not cover loss of or destruction of or damage to any property or any consequential loss or any legal liability of whatsoever nature with respect to which:

- (i) the Insured under this Treaty is also an insured or an additional insured under any other insurance policy, including any nuclear energy liability policy; or
- (ii) any person or organization is required to maintain financial protection pursuant to legislation in any country; or
- (iii) the Insured under this Treaty is, or had this Treaty not been issued would be, entitled to indemnification from any government or agency thereof.

4.4. Loss, destruction, damage, expense or legal liability in respect of the nuclear risks not excluded by reason of paragraph 4.2 shall (subject to all other terms, conditions, limitations, warranties and exclusions of this Treaty) be covered, provided that:

- (i) in the case of any claim in respect of radioactive material in the course of carriage as cargo, including storage or handling incidental thereto, such carriage shall in all respects have complied with the full International Civil Aviation Organization "Technical Instructions for the Safe Transport of Dangerous Goods by Air", unless the carriage shall have been subject to any more restrictive legislation, when it shall in all respects have complied with such legislation;
- (ii) this Treaty shall only apply to an incident happening during the period of this Treaty and where any claim by the Insured against the Insurers or by any claimant against the Insured arising out of such incident shall have been made within three years after the date thereof;

- (iii) in the case of any claim for the loss of or destruction of or damage to or loss of use of an aircraft caused by or contributed to by radioactive contamination, the level of such contamination shall have exceeded the maximum permissible level set out in the following scale:

Emitter {IAEA Health and Safety Regulations}	Maximum permissible level of non-fixed radioactive surface contamination {Averaged over 300 cm²}
Beta, gamma and low toxicity alpha emitters	Not exceeding 4 Becquerels/cm ² (10 - ⁴ microcuries/cm ²)
All other emitters	Not exceeding 0.4 Becquerels/cm ² (10 - ⁵ microcuries/cm ²)

- (iv) the cover afforded hereby may be cancelled at any time by the Insurers giving seven days' notice of cancellation.

AVN 38B - 22.7.96

5. Extra Contractual Obligations Clause

This Treaty shall exclude all cover in respect of extra contractual obligations howsoever arising, such extra contractual obligations being defined as any award made by a court of competent jurisdiction against an Insurer or Reinsurer, which award is not within the coverage granted by any insurance and/or reinsurance contract made between the parties in dispute.

Notwithstanding the foregoing this Treaty shall extend to cover any loss arising from a "claims related extra contractual obligation"

- (a) awarded against the Reinsured or
- (b) incurred by the Reinsured where they have paid their share of a "claims related extra contractual obligation" awarded against one or more of their co-insurers.

It is warranted that any recovery under this Treaty in respect of "claims related extra contractual obligation" shall only be for that part of any award which corresponds to the Reinsured's share of the insurance and/or reinsurance policy and/or contract giving rise to the award and all proportional protection effected by the Reinsured shall provide or shall be deemed to provide pro-rata coverage for such obligations.

This Treaty shall also extend to cover all loss from extra contractual obligations howsoever arising where the loss is incurred by the Reinsured as a result of their participation in any insurance or reinsurance which provides cover for such loss, it being understood and agreed that such loss results from a contractual liability incurred by the Reinsured.

A "claims related extra contractual obligation" shall be defined as the amount awarded against an Insurer or Reinsurer found liable by a court of competent jurisdiction to pay damages to an Insured or Reinsured in respect of the conduct of a claim made under an insurance and/or reinsurance policy and/or contract, where such liability has arisen because of:

- (a) the failure of the Insurer or Reinsurer to agree or pay a claim within the policy limits or to provide a defence against such claims as required by law or
- (b) bad faith or negligence in rejecting an offer of settlement or
- (c) negligence or breach of duty in the preparation of the defence or the conduct of a trial or the preparation or prosecution of any appeal and/or subrogation and/or any subsequent action resulting therefrom.

There shall be no liability under this Treaty in respect of:

- (a) any assumption of liability by way of participation in any mutual scheme designed specifically to cover extra contractual obligations; or
- {b) any extra contractual obligation arising from the fraud of a director, officer or employee of the Reinsured acting individually or collectively or in collusion with an individual or corporation or with any other organisation or party involved in the presentation defence or settlement of any claim.

Any loss arising under this Treaty in respect of "claims related extra contractual obligations" shall be deemed to be a loss arising from the same event as that giving rise to the claim to which the extra contractual obligation is related; but recovery hereunder is subject to the insurance and/or reinsurance policy and/or contract which gives rise to the extra contractual obligation falling within the scope of this Treaty.

01/92
LSW327

6. Seepage and Pollution Clause

Any liability policy or liabilities section of a policy protected hereunder is deemed to be subject to clause AVN46B or its equivalent, being the applicable clause contained in the policy under consideration.

Nevertheless for the purposes of this Treaty it is agreed that in respect of aviation fuelling, defuelling, refuelling and products legal liability policies paragraph 1{b) of clause AVN46B or its equivalent is amended to read "pollution and contamination of any kind whatsoever other than pollution and contamination of a product or products sold or supplied".

Notwithstanding the foregoing, clause AVN46B or its equivalent shall not apply in respect of:

- A. Aircraft owners and operators liability for passengers, cargo and mail,
- B. Contingent aircraft liability for passengers, cargo and mail,
- C. Airport owners and operators liability arising from legionnaire's disease.

For the purpose of this Treaty an occurrence under A and/or B and/or C shall be defined as one or more factually similar events or occurrences which can be identified as having originated within the same period of 24 consecutive hours, and from the same original cause.

Notwithstanding the foregoing, clause AVN46B or its equivalent may be amended or deleted as required by legislation.

03/06
LSW1593

7. War Hijackings and Other Perils Reinsurance Clause (including limited Hull and Spare Parts cover)

For the purposes of this Treaty clause AVN48B shall be understood to mean clause AVN.488 or any similar clause used in substitution thereof. The clause applicable hereto shall be that in use in the policy issued by the Reinsured under which the claim falls or, in the absence of such clause, that then in current use.

The perils stipulated in paragraph {b) of clause AVN48B are excluded entirely from the protection of this Treaty.

PART 1 - LIMITED COVERAGE

This Treaty excludes losses arising from the perils stipulated in paragraphs (a) to (g) inclusive of clause AVN48B, other than to the following extent:

A. HULLS AND SPARE PARTS

This Treaty will cover hull and spare parts losses arising from the perils detailed in paragraphs (c), (e)

and (g) of clause AVN48B, provided that:

- (a) business classified by the Reinsured as "Hull War and Allied Perils" is excluded entirely from the protection of this Treaty.
- (b) Reinsurers liability is limited to the Reinsured's proportion of USD 300,000,000 (or the equivalent in other currencies at the date of acceptance of the risk by the Reinsured) of original hull and spare parts losses in total arising out of any one event, each operator (regardless of the number of policies and/or contracts and/or interests on the same hulls and spare parts), (the value to be determined by reference to the operators "All Risks" policy).

B. LIABILITIES

This Treaty will cover liability losses arising from the perils stipulated in paragraphs (a), (c), (d), (e), (f) and (g) of clause AVN48B, but the limit of Reinsurers' liability shall be the Reinsured's proportion of the primary USD 50,000,000 (or EUR 60,000,000 where required by national legislation) (or the equivalent in other currencies at the date of acceptance of the risk by the Reinsured) of original loss or the applicable original policy limit whichever the lesser any one occurrence each Insured (hereinafter referred to as the "Sub-Limit"). To the extent coverage is afforded to an Insured under the original policy, the Sub-Limit shall not apply to the Reinsured's proportion of such Insured's liability:

- (i) to the passengers (and for their baggage and personal effects) of any aircraft operator to whom the original policy affords cover for liability to its passengers arising out of its operation of aircraft;
- (ii) for cargo and mail while it is on board the aircraft of any aircraft operator to whom the original policy affords cover for liability for such cargo and mail arising out of its operation of aircraft.

In the case of (i) and (ii), this Treaty will cover the Reinsured's proportion of the full original policy limit(s).

PART 2 - DEFINITION OF EVENT

For the purposes of this Treaty the term "any one event" shall be understood to mean:

A. HIJACKING LOSSES

As regards losses arising from perils as stipulated in paragraph (g) of clause AVN48B (whether or not such losses are actually paid because of the coverage afforded by paragraph (g)), at the Reinsured's discretion following a loss:

- (i) the Priority and Indemnity hereon shall be applied to the total of all losses paid by the Reinsured which are covered hereunder and which arise out of or follow from each act of hijack separately, and the time of the loss shall be taken as the time the hijacker first makes his presence known;

or

- (ii) in accordance with Part B below.

Provided that losses to and arising from Aircraft in flight shall always be recovered under Part A(i) above.

For the purposes of this clause a "flight" shall be deemed to begin when the aircraft moves forward when taking off and shall be deemed to end when the machine comes to rest after making contact with the ground and/or water.

B. LOSSES ARISING FROM OTHER PERILS

As regards losses arising from perils as stipulated in clause AVN48B (whether or not such losses are actually paid because of the coverage afforded by clause AVN48B) other than losses recovered under the provisions of Part A(i) above, for the purposes of this Treaty the term "any one event" shall be understood to mean

"All such losses sustained by the Reinsured which occur during any one period of 24 consecutive hours and within an area of radius 10 miles which arise from one of the perils stipulated in clause AVN48B".

The Reinsured may select both the point from which the 10 mile radius applies and also the moment from

which the period of 24 hours shall be deemed to commence. No area, however, may be selected which overlaps another area selected for the purposes of making a recovery hereunder in respect of losses occurring at the same time. No period of 24 hours may commence earlier than the date and time of the happening of the first recorded individual loss to the Reinsured (in respect of the claim under consideration) nor prior to the inception of this Treaty. Furthermore in respect of any one location already included in a selected area, no period of 24 hours may commence prior to the expiry of any previously selected 24 hour period.

12/03
LSW1158A

8. Aviation Date Recognition (Reinsurance) Clause (LSW1036)

8.1. In respect of all business allocated to the Reinsured's Aviation Account, to the extent provided in this Article, this Treaty shall respond to the Reinsured's loss arising out of policies which include as an incidental part thereof (and not as a principal or exclusive purpose) cover for

- (a) an aircraft accident or
- (b) an event or occurrence

caused by the failure of any equipment to function safely or correctly following any real or simulated change of date.

8.2. EXCLUDING FIRST-PARTY CONSEQUENTIAL LOSS

This Treaty does not cover the Reinsured's loss or losses, caused as aforesaid, which arise out of cover on a first party basis for grounding, loss-of-use, business interruption, consequential loss or the like.

8.3. AIRCRAFT ACCIDENTS

Losses arising from more than one aircraft accident cannot be aggregated for the purposes of this Treaty. However the aggregate of all the Reinsured's losses arising out of one aircraft accident caused as aforesaid, shall constitute one loss for the purposes of computing Ultimate Net Loss hereon.

For the purposes of this Article a collision between two or more aircraft shall be deemed one aircraft accident.

8.4. EVENT OR OCCURRENCE (NOT AN AIRCRAFT ACCIDENT)

Losses arising from either:

- (a) more than one event or occurrence

Or

- (b) failures as aforesaid which are common to more than one item of equipment,

cannot be aggregated for the purposes of this Treaty.

However to the extent that the Reinsured covers physical damage to tangible property or bodily injury (including death), the aggregate of all the Reinsured's losses at any one location arising out of one event or occurrence (not being an aircraft accident) if caused by failure of any one item of equipment as aforesaid shall constitute one loss for the purpose of computing Ultimate Net Loss hereon.

8.5. CONDITION PRECEDENT

It is a condition precedent that the Reinsured has taken all reasonable steps in accordance with insurance market practice to ensure that those insured by original policies have followed appropriate best practice for the purpose of avoiding and minimising loss, damage or liability arising out of any failure as aforesaid.

8.6. This Treaty is varied only to the extent provided in this Article. All other terms conditions, limits and exclusions apply, to the extent that they are not in conflict with the foregoing.

9. Space Exclusion Clause

This Treaty EXCLUDES the Reinsured's loss or liability howsoever insured or reinsured in respect of:

- (a) actual or contingent "All Risks" or "War Risks" policies or the like, of any satellite or launch vehicle
and
- (b) lass, damage or failure of any satellite or launch vehicle which occurs before, during or after launch, or in orbit; and lass of use, business interruption and/or consequential lass arising from the said loss, damage or failure OTHER THAN liability arising out of death of or injury to third parties (not being employees of an original insured) or loss or damage to third parties including loss of or damage to:
 - (i) a satellite after in flight separation from its launch vehicle, and
 - (ii) a satellite, launch vehicle or other property not participating in the launch which causes the said loss or damage

and

- (c) "Products" cover in policies/contracts underwritten by the Reinsured (which incept on or after 1 April 1992) in excess of the Reinsured's proportion of the following original limits for any one original lass any one satellite any one original insured:
 - (i) USD 220 million or
 - (ii) USD 110 million whilst two or more satellites are on board the same launch vehicle.

CONDITION PRECEDENT

It is a condition precedent to any liability hereon that, so far as may be possible in accordance with applicable law, the Reinsured has taken all reasonable precautions to ensure that customary contract clauses incorporating hold harmless agreements, waivers and indemnities are in place for the benefit of prime contractors and, wherever possible, for the benefit of all sub-contractors.

12/00
LSW345A

10. Residual Value Insurance Exclusion Clause

As used herein: "Residual Value" means the future value of an asset howsoever described or ascertained.

This Treaty shall exclude coverage in respect of any loss or liability in respect of insurance or reinsurance of which the principal purpose is wholly or partly to contribute to or to guarantee, pay, protect, or support Residual Value or any reduction thereof, howsoever insured PROVIDED THAT insurance or reinsurance of accidental physical loss or damage is not excluded hereby.

11/1992
LSW346

11. Aviation Grounding Liability Clause (LSW1082)

To apply to losses occurring on or after 1st July 1999.

This Treaty will provide cover for the Reinsured's share of an original grounding loss any one original Insured PROVIDED THAT no loss is payable under the coverage provided by Part 2 if Reinsurers have any liability for the same original grounding loss under the coverage provided by Part 1.

Part 1. GROUNDING FOLLOWING AN ACCIDENT

- (a) As used in this Part:

"contribution" means the insured amounts paid by or on behalf of an original Insured in satisfaction of legal liability for grounding (whether such amounts are paid in accordance with an arbitration award, court verdict or compromise settlement; with or without any admission of liability; or in accordance with any co-defendant agreement) but shall not include the expenses of investigation, defence, settlement or recourse actions; or reserves for unpaid losses; or funds collected in advance of payments; or office costs and remuneration of directors and employees of the original Insured, insurers and reinsurers.

"grounding" means a continuous period of withdrawal of aircraft from flight operations arising from one common cause or suspected cause. It being understood that, if grounding is the result of an accident to aircraft, then other losses emanating from that accident shall not be included in the grounding losses of this Part.

"prime contractor" means the corporation, partnership or consortium responsible for the final assembly of either the complete aircraft, or the main power-plant, involved in the grounding.

- (b) In the event of an aircraft accident and/or loss which subsequently results in aircraft being grounded because of investigations made resulting from the said accident and/or loss such grounding shall be considered, for the purposes of this Treaty, as one occurrence resulting from a single accident and/or loss which (for the purposes of recovery under this Treaty) shall then be added to the Reinsured's other losses (if any) resulting from the aforementioned accident and/or loss.
- (c) In respect of any one original insured grounding loss, Reinsurers liability hereon shall not exceed their share of the following limits in US or Canadian Dollars (or the equivalent in other currencies at the date of acceptance of the risk by the Reinsured):

USD 220 million any one original Insured who is a prime contractor if solely liable for such grounding;

USD 110 million any one original Insured including a prime contractor when acting as a sub-contractor

Subject to the foregoing, the said limit of USD 250 million in respect of a prime contractor shall be reduced by any contribution of one or more other original Insureds to the same grounding but shall not be reduced below USD 125 million.

GROUNDING FOLLOWING A MANDATORY ORDER OR AIRWORTHINESS DIRECTIVE

Part 2.

To apply to original risks incepting on or after 1st December 1997.

This Treaty will provide cover for grounding arising out of the legal liability of any one original Insured or so deemed following the issue of a Mandatory Order(s) or Airworthiness Directive(s) by a Civil Airworthiness Authority(ies) during the original policy period, provided that:

- (a) The said Order(s) or Directive(s) is issued because of an alleged or suspected like defect, fault or condition in an aircraft product sold or supplied; and
- (b) Such original Insured is not a prime contractor (as defined above); and
- (c) Aircraft are rendered inoperable for a period of not less than 7 consecutive days solely for the purpose of compliance with the said Order(s) or Directive(s); and
- (d) Order(s) or Directive(s) from one or more Civil Airworthiness Authority(ies) shall be considered as one grounding occurrence; and

- (e) Reinsurers hereon shall not be liable for more than their share of an original grounding loss/occurrence to insurers of US or Can\$50,000,000 (or the equivalent in other currencies at the date of acceptance of the risk by the Reinsured) and in the aggregate during the original policy period to any one original Insured or so deemed.

07/99
LSW1082

12. Asbestos Exclusion Clause in respect of risks incepting on or after 1st January 2009

Any Liability Policy or liabilities section of a Policy protected hereunder is deemed to be subject to an Asbestos Exclusion Clause, being the applicable Asbestos Exclusion Clause contained in the Policy under consideration.

In the event that a Liability Policy or liabilities section of a Policy does not contain such an exclusion then the following Asbestos Exclusion Clause will be deemed to apply to that Liability Policy or to the liability section of that particular Policy:

"This policy does not cover any claims of any kind whatsoever directly or indirectly relating to, arising out of or in consequence of:

1. the actual, alleged or threatened presence of asbestos in any form whatsoever, or any material or product containing, or alleged to contain, asbestos; or
2. any obligation, request, demand, order, or statutory or regulatory requirement that any Insured or others test for, monitor, clean up, remove, contain, treat, neutralize, protect against or in any other way respond to the actual, alleged or threatened presence of asbestos or any material or product containing, or alleged to contain, asbestos.

However, this exclusion shall not apply to any claim caused by or resulting in a crash fire explosion or collision or a recorded in-flight emergency causing abnormal aircraft operation.

Notwithstanding any other provisions of this policy, Insurers will have no duty to investigate, defend or pay defence costs in respect of any claim excluded in whole or in part under paragraphs 1 or 2 hereof.

ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED."

08/05
LSW1570

13. Directors and Officers Liability Exclusion Clause

This Treaty shall exclude all cover in respect of directors and officers liability insurances covering "wrongful acts" committed or attempted by directors or officers of an insured company.

Notwithstanding the foregoing this Treaty shall not exclude cover in respect of liability incurred by the Reinsured caused by or resulting from personal injury, bodily injury, sickness, disease or death of any person or damage to or destruction of any tangible property including loss of use resulting therefrom.

The term "wrongful act" shall mean any actual or alleged error or mis-statement or misleading statement or omission or neglect or breach of duty by the directors and officers in the discharge of their duties individually or collectively claimed against them solely by reason of their being directors or officers of the company.

01/92
LSW326

14. Non-Aviation Liability Reinsurance Clause

The Reinsured shall not contribute towards their ultimate net loss more than their proportion of USO/EUR 25,000,000 or currency equivalent any one original loss, any one original insured unless the loss arises from one or more of the following:

1. An occurrence involving the ownership, use or operation of Aircraft.
2. An occurrence arising at an airport, airfield or heliport location.
3. An occurrence arising at any other location in connection with the ownership, use or operation of Aircraft.
4. An occurrence arising out of the provision of goods or services to others
 - (a) in connection with the ownership, use or operation of Aircraft.
 - (b) involved in the Aircraft industry.
5. An occurrence arising out of the design, manufacture, construction, alteration, repair, overhaul, service or treatment of Aircraft.

Aircraft shall not be defined in terms wider than aircraft, airships, missiles, spacecraft, launch vehicles, helicopters, rockets, balloons, gliders, microlights, remote piloted vehicles, air cushioned vehicles or any article forming part thereof, or supplied for installation therein, or used in connection therewith including related advice and services.

03/06
LSW1592

15. Aviation Authority Test Flight Clause

Whilst the insured aircraft is being operated for the purpose of a test flight for the award, renewal or continuation of the certificate of airworthiness:

1. The aviation authority having jurisdiction over the insured aircraft is included as an additional Insured under the liability sections of the Policy.
2. The pilots approved by, employed by or contracted to such aviation authority for the purpose of such test flight are included as additional Insureds under the liability sections of the Policy.
3. The permitted pilots provision within the Policy is amended to include any pilot approved by, employed by or contracted to the aviation authority having jurisdiction over the insured aircraft for the purpose of such test flight.
4. The purpose of use provision within the Policy is amended to include such test flight.

Nevertheless, notwithstanding the inclusion herein of more than one Insured the total liability of the Insurers in respect of any or all Insureds shall not exceed the limit(s) of liability stated in the Policy.

Except as specifically provided in the foregoing to the contrary, this clause is subject to the coverage, terms, conditions, limitations and exclusions of the Policy to which it is attached.

AVN110 15.9.10

ATTACHMENT 4

Schedule of Biscaya Versicherung protected under MARINE AND AVIATION EXCESS OF LOSS REINSURANCE TREATY

1. Xxx
2. Yyy
3. Zzz

ATTACHMENT 5

CONTACTS: